

Constitution of Merriott Social Venue

(Formerly Merriott Social Club)

DRAFT v4 — For Community Review

July 2026

Glossary of Terms

This glossary provides clear definitions of legal and governance terms used throughout the Constitution.

AGM (Annual General Meeting)

A yearly meeting where Members receive accounts, elect Committee members, and make major decisions.

Appeal

A formal request for the President to review a disciplinary or membership decision.

Asset

Any land, building, funds, equipment, or property owned by the Venue.

Bar Manager

The senior employee responsible for day-to-day management of bar operations, including staff, stock, and licensing compliance.

Charitable Trust / Held in Trust

A legal arrangement where Trustees hold property for community benefit, not personal gain.

CIC (Community Interest Company)

A not-for-profit company that operates for community benefit.

Committee

The elected body responsible for the Venue's daily management.

Constitution

The governing rules, processes, and responsibilities of the Venue.

Delegation of Authority Policy

A Committee-adopted document specifying which operational and financial decisions staff may make independently, which require Chair approval, and which require full Committee approval.

Disciplinary Procedure

The process by which the Committee investigates and responds to alleged member misconduct.

Dissolution

The formal winding-up and closure of the Venue as an organisation.

EGM (Extraordinary General Meeting)

A meeting called outside the AGM to address urgent business.

Executive Officers

The three operational officers of the Committee: the Chair, Secretary, and Treasurer, collectively referred to as the Executive Officers. They are responsible for the day-to-day leadership and administration of the Venue.

Member

A person who has applied for and been granted membership of the Venue in accordance with Section 4.

Non-Executive Role

A position overseeing governance, not operations (e.g., President).

Ordinary Resolution

A decision passed by a simple majority.

Quorum

The minimum number of Members, Committee Members, or Officers who must be present for a meeting to validly conduct business.

Special Resolution

A decision requiring a higher percentage vote (e.g., 66% or 90%).

Subscription

The membership fee payable to the Venue, as set by the Committee from time to time.

Trustee

A legal custodian of Venue property acting under the Trustees Act 2000.

Venue

Refers to Merriott Social Venue.

1. Name

The organisation shall be known as Merriott Social Venue, formerly Merriott Social Club.

2. Purpose and Objectives

The Venue exists to provide:

- Social, recreational, cultural and community facilities.
- A safe, inclusive environment for events and community use.
- Opportunities for social welfare, participation and community development.

These purposes shall be delivered for public benefit.

3. Legal Status

The Venue's land and buildings are held in charitable trust.

The Venue may transition to an appropriate structure (CIO or CIC) with Member approval.

All assets are permanently dedicated to community benefit and cannot be used for personal gain.

4. Membership

4.1 Becoming a Member

Any person wishing to join the Venue may apply for membership by completing an application form. The Committee shall consider and approve or decline applications at its discretion. Where the Committee has set a Subscription, membership takes effect on payment of the applicable fee following approval.

4.2 Membership Categories

- Ordinary Members — full voting rights.
- Honorary Members — awarded by the Committee in recognition of notable contribution to the Venue or the community; no voting rights.
- Non Members — No voting rights, no membership benefits

4.3 Resignation and Termination of Membership

A Member may resign at any time by giving written notice to the Secretary. Membership may be suspended or terminated by the Committee in accordance with the Disciplinary Procedure (Section 11).

5. Eligibility for Committee Membership

Any Ordinary Member in good standing may stand for election to the Committee.

Members elected to the Committee retain full voting rights as Ordinary Members and additionally participate in Committee decision-making and governance under Section 7.

6. Governance Structure: The President

6.1 Election and Term

The President is elected for a three-year term by the Membership at the AGM.

6.2 Annual Confirmation by the Committee

At each AGM held during the President's three-year term, the newly elected Committee shall confirm, by ordinary resolution, whether the President continues to enjoy its confidence.

If a vote of no confidence is carried by a two-thirds majority of the Committee, the Committee shall call an EGM as soon as reasonably practicable. At that EGM, the Membership shall elect a President. The current President shall remain in post until the outcome of that election.

6.3 Three-Year Re-election

At the end of each three-year term, the President must stand for re-election by the Membership at the AGM.

6.4 Responsibilities

- Uphold and protect the Constitution.
- Oversee appeals and disciplinary matters.
- Ensure transparency, fairness and compliance.

All Members and Committee Members are answerable to the President in respect of these responsibilities. The President is a non-executive guardian of the Constitution, not an operational officer.

6.5 Casting Vote

As the sole exception to the President's non-executive role, the President holds a casting vote at General Meetings in the event of a tied vote, in order to prevent governance deadlock. For the avoidance of doubt, the President's casting vote applies at General Meetings only; the Chair holds the casting vote at Committee meetings (see Section 7.1a).

7. The Committee

7.1 Composition

The Venue shall be managed by a Committee consisting of:

- President (non-executive; not counted toward the minimum size below).
- Chair (Executive Officer).
- Secretary (Executive Officer).
- Treasurer (Executive Officer).
- Up to 13 elected Committee Members.

7.1a Role of the Chair

The Chair shall:

- Preside over all Committee meetings.
- Ensure the orderly conduct of business and that all Members have the opportunity to contribute.
- Support effective decision-making by the Committee.
- Act as the primary point of contact for employed staff on behalf of the Committee, holding day-to-day operational oversight of staff within the framework of the Delegation of Authority Policy (Section 16.4).
- Act in the best interests of the Membership and in accordance with this Constitution.

In the event of a tied vote at a Committee meeting, the Chair shall have a casting vote. This applies at Committee meetings only; the President holds the casting vote at General Meetings (see Section 6.5).

7.1b Role of the Secretary

The Secretary shall:

- Arrange and give notice of meetings, including AGMs and EGMs.
- Prepare agendas in consultation with the Chair.
- Maintain accurate minutes and records of all meetings.
- Manage correspondence on behalf of the Venue.

7.1c Role of the Treasurer

The Treasurer shall:

- Oversee the financial management of the Venue.

- Ensure proper records of income and expenditure are maintained.
- Present financial reports to the Committee and accounts at the AGM.
- Ensure compliance with financial regulations and reporting requirements.
- Review and approve Bar Manager expenditure reports in accordance with the Delegation of Authority Policy.

7.2 Minimum Committee Size

Total Committee membership must be at least six (6), excluding the President. This count includes the three Executive Officers.

7.3 Replacement of Executive Officers

If an Executive Officer resigns, the Committee may appoint an existing Committee Member to the vacant role by ordinary resolution (a simple majority of those present and voting, subject to quorum). The President shall be invited to attend but their absence shall not invalidate proceedings. If the vacancy is not filled within 60 days, the Committee must call an EGM.

7.4 Quorum

A quorum for Committee meetings shall be a simple majority of Committee Members then in office, including at least one Executive Officer.

7.5 Committee Responsibilities

- Manage day-to-day operations.
- Ensure compliance with licensing, health & safety, employment law, and charity rules.
- Support the President in appeals and governance.
- Maintain accurate records, accounts and minutes.
- Act in the best interests of the Membership.

8. Trustees

Up to four Trustees may be appointed by the Committee by ordinary resolution, each for a term of three years, renewable by further Committee resolution.

Trustees hold legal title to Venue land and property and must act under the Trustees Act 2000.

A Trustee may be removed by death, resignation, or a two-thirds majority Committee resolution.

9. Financial Management

The Treasurer manages all cash and accounts.

Trustees hold all non-cash assets in trust.

Accounts must be presented at the AGM.

Auditors/examiners are appointed where legally required.

10. General Meetings

10.1 AGM

Must be held within three months of the financial year end. Business includes:

- Accounts presentation.
- Elections.
- Auditor appointment.
- Motions submitted in advance.

Voting: only Members may vote. Nominations must be submitted 7 days prior. Contested roles are decided by secret ballot. The quorum for an AGM is 15 Members or 10% of the Membership, whichever is lower.

10.2 EGM Called by Committee or Members

An EGM may be called by the Committee, or by 30 Members or one-fifth of the Membership (whichever is lower). Only the business stated in the notice of meeting may be discussed. The quorum for an EGM shall be the same as for an AGM.

10.3 EGM Called by the President (Exceptional Circumstances)

The President has the power, in exceptional circumstances, to call an EGM independently. This is a constitutional safeguard of last resort and must be exercised strictly in accordance with the procedure below.

Step 1 — Written Notice to the Committee

Before calling an EGM, the President must give the Committee written notice setting out: (a) the specific grounds relied upon (serious mismanagement, breach of this Constitution, or conduct seriously prejudicial to the interests of the Venue); (b) the factual basis for those grounds; and (c) the outcome sought.

Step 2 — Committee Response Period (5 Days)

The Committee shall have 5 days from receipt of the written notice to respond. The Committee may: (a) accept the President's concerns and take remedial action, in which case the President shall not proceed unless that remedial action is not completed within a further 5 days; or (b) reject the concerns in writing, with reasons.

Step 3 — Independent Review (Recommended)

If the Committee rejects the President's concerns, the President is strongly encouraged to seek a brief written opinion from an independent person with relevant governance experience (such as a solicitor, the Club and Institute Union, or a similar body) confirming that the grounds appear to be made out. This step is not mandatory but provides an important safeguard against the power being exercised on mistaken or disputed facts.

Step 4 — Calling the EGM

Having completed Steps 1 and 2, the President may call an EGM. The notice of meeting must: (a) clearly set out the reasons and the business to be considered; (b) be given to all Members with at least 14 days' notice; and (c) be copied to the Secretary for the record.

At the EGM, the Membership may consider a motion to remove some or all Committee Members and, where applicable, elect replacements. Any removal requires a two-thirds majority of those Members present and voting.

If the motion to remove Committee Members is put to the vote and fails to achieve the required two-thirds majority, the meeting may immediately consider a motion of no confidence in the President. If such a motion is passed by a two-thirds majority of Members present and voting, the President shall be removed from office with immediate effect. The usual process for electing a President shall then apply: the Committee shall call an EGM as soon as reasonably practicable at which the Membership shall elect a new President.

Step 5 — Interim Governance if all Committee Members are Removed

If all Committee Members are removed, the following interim arrangements apply until a new Committee is elected:

- The President shall assume temporary oversight of governance and legal compliance, with authority to authorise essential expenditure and take steps to preserve the Venue's assets and licences.
- The Bar Manager shall continue day-to-day bar operations under Section 16, reporting directly to the President during the interim period.
- A new election meeting must be convened within 28 days to elect at minimum the three Executive Officers and enough Committee Members to meet the minimum of six required under Section 7.2.

Frequency Limit

The President may not use the power under this Section more than once in any rolling 12-month period, except where the Committee itself resolves by ordinary resolution to invite the President to exercise it again within that period.

11. Disciplinary Procedure and Appeals

11.1 Grounds

The Committee may take disciplinary action against a Member for conduct prejudicial to the interests, reputation, or good order of the Venue, including breach of this Constitution, breach of house rules, or criminal conduct on Venue premises.

11.2 Process

1. A written complaint or report shall be submitted to the Committee.
2. The Committee shall investigate and notify the Member of the allegations in writing.
3. The Member shall be given a reasonable opportunity to respond, in writing or in person, before any decision is made.
4. The Committee shall decide by ordinary resolution and notify the Member in writing with reasons.
5. Any Committee Member with a conflict of interest shall not participate in the decision.

11.3 Sanctions

Available sanctions include a written warning, suspension of membership for a defined period, or termination of membership.

11.4 Appeal

A Member may appeal to the President within 14 days of being notified of the decision. The President may uphold, vary, or overturn the original decision. The President's decision on appeal is final. Where the President has had prior involvement in the matter, an independent person appointed by the Committee shall determine the appeal.

11.5 Natural Justice

All disciplinary processes must follow the principles of natural justice: clear notice of the allegations, a fair opportunity to respond, and an impartial decision-maker.

12. Amendments

Amendments to this Constitution require a two-thirds majority at an AGM or EGM, except that any amendment to Section 13 (Protection of Venue, Assets and Land) requires the same 90% threshold and combined-vote process set out in Section 13.4.

This Constitution must be displayed within the Venue and made available to all Members on request.

13. Protection of Venue, Assets and Land

13.1 No Loans or Charges

No loans, mortgages, or financial charges may be secured against the Venue or its land.

13.2 No Sale

The Venue building and land cannot be sold, except by the process below.

13.3 Gift-Only Transfer

If the Venue must transfer ownership, it may only be gifted to a local charity or CIC, and only if the recipient signs a legally binding agreement not to sell the Venue.

13.4 Exceptional Circumstance Vote

A sale may proceed only if all of the following conditions are met:

- A combined vote is held by the Full Committee, Merriott Parish Council, and the Membership.
- At least 50% of the current Membership is present and voting.
- At least 90% of those present vote in favour.

If any of these conditions are not met, the Venue cannot be sold.

13.5 Trustee Duties

Trustees must enforce all asset-protection rules, prevent unauthorised borrowing, and block any sale that does not meet Section 13.4.

14. Dissolution

The Venue may be dissolved only if all of the following conditions are met:

- A General Meeting is convened specifically for the purpose of considering dissolution.
- At least 50% of the current Membership is present and voting.
- At least 90% of those present vote in favour of dissolution.

On dissolution, after settling all debts and liabilities, any remaining assets shall not be distributed to Members but shall be transferred to one or more local charities or community organisations with similar objects, as determined by the Membership at the dissolution meeting.

15. Licensing

The Venue may host public events at which alcohol is sold to non-members, in accordance with the conditions of its premises licence.

16. Staffing, Bar Management and Delegation

16.1 Employment Obligations

The Committee must comply with all applicable employment law, PAYE, insurance, and health and safety regulations in respect of all employees and volunteers. Trustees and Committee Members must take reasonable steps to avoid personal liability by complying with their statutory duties. All volunteers must be appropriately insured and supervised.

16.2 The Bar Manager

The Committee shall appoint a Bar Manager responsible for the day-to-day operational management of the bar. The Bar Manager's responsibilities include, but are not limited to:

- Managing bar staff, including recruitment (within approved budget), rostering, shift cover and day-to-day supervision.
- Stock ordering, cellar management and supplier relationships, within budgets approved by the Committee.
- Ensuring the bar operates in compliance with the Venue's premises licence and all applicable licensing legislation at all times.
- Maintaining health and safety standards in all bar areas.
- Promptly reporting to the Chair any matter affecting the premises licence, creating a health and safety risk, or representing a significant unplanned financial commitment.

16.3 Accountability and Line Management

The Bar Manager is accountable to the Chair for day-to-day operational matters. The Chair acts as the Bar Manager's line manager on behalf of the Committee, providing day-to-day direction and support within the framework set by the Committee.

The Bar Manager is accountable to the Executive Officers in respect of employment terms, conduct and performance. The appointment and dismissal of the Bar Manager shall be decided by the Committee by ordinary resolution.

All other bar staff are accountable to the Bar Manager in the first instance, and to the Chair where matters are escalated beyond the Bar Manager's authority.

16.4 Delegation of Authority Policy

The Committee shall adopt and maintain a Delegation of Authority Policy setting out which operational and financial decisions the Bar Manager may make independently, which require the Chair's approval, and which require a full Committee resolution. The Policy must address at minimum:

- The expenditure threshold above which unplanned spending requires Chair or Committee approval.
- The process for approving new bar staff hirings or the use of temporary cover.
- The procedure for temporary closure or significant changes to opening hours.
- Cash handling, end-of-day reconciliation and banking procedures.
- The escalation path for licensing, safety or HR concerns.

The Policy shall be reviewed by the Committee at least annually and made available to the Bar Manager and Chair at all times. It does not form part of this Constitution and may be amended by ordinary Committee resolution without a formal constitutional amendment.

16.5 Bar Manager Reporting

The Bar Manager shall provide the Committee with a written report at each scheduled Committee meeting, covering at minimum issues related to: staffing levels, stock and ordering activity, any licensing or safety matters, and any items requiring a Committee decision. Between meetings, the Bar Manager shall report urgent matters to the Chair without delay.

16.6 Licensing Compliance

The Committee must ensure that the Venue's premises licence is held and maintained in accordance with the Licensing Act 2003 at all times. The Bar Manager must hold, or operate under the authority of a person who holds, a valid personal licence where required by the premises licence conditions. Any change to the Designated Premises Supervisor (DPS) arrangement must be approved by the Committee by ordinary resolution before submission to the licensing authority.

End of Draft v4 Constitution